



United States
Attorney's Office
Southern District of Florida



Owners and CEO of Wholesale Pharmaceutical Company Convicted of Distributing More Than \$92 Million of Black-Market HIV Drugs



Monday, November 17, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
Florida

MIAMI – A federal jury in Fort Lauderdale convicted two Maryland brothers who owned a pharmaceutical wholesale company on Oct. 29 for their roles in a scheme to purchase and resell more than \$92 million worth of illegally obtained misbranded HIV drugs.

According to court documents and evidence presented at trial, Patrick Boyd, 47, and Charles Boyd, 43, of Easton, Maryland, owned and operated a pharmaceutical wholesale company called Safe Chain Solutions. Their co-owner and co-defendant, Adam Brosius, previously pleaded guilty to conspiring to commit wire fraud with the Boyds.

"This case exposed a reckless disregard for human life," said U.S. Attorney Jason A. Reding Quiñones. "The defendants put profit ahead of patient safety, moving more than \$92 million in tampered, black-market HIV medication through pharmacies across the country. Our Office will continue holding accountable those who endanger the public and betray the trust that underpins our healthcare system."

Trial evidence showed that the Boyds conspired with at least five black-market suppliers to purchase HIV drugs obtained through patient "buyback schemes." The Boyds then resold the drugs to thousands of pharmacies nationwide—including South Florida—while using falsified paperwork to make the medications appear to have been purchased from legitimate distributors.

One of their suppliers, Peter Khaim, owner of Boulevard 9229, testified that he purchased HIV drugs from patients on the street, removed the original prescription labels, and packaged the bottles in cardboard boxes—sometimes scavenged from trash on pick-up days—before shipping them to the Boyds. On one occasion, Khaim used a diaper box he found on the street to ship the drugs because it

was sturdy enough to hold the bottles. In a separate shipment, he sent approximately \$500,000 worth of HIV medications in a single cardboard box to Safe Chain Solutions. Many of the bottles were dirty, scuffed, and missing patient instructions, yet the Boyds accepted and resold them with falsified paperwork concealing their origin.



In total, the Boyds purchased and resold more than \$35 million in black-market HIV drugs from Boulevard 9229 and more than \$42 million from another supplier, Gentek, whose leaders were based in Miami. One Gentek leader has already been convicted and sentenced to 15 years in prison.

Throughout the conspiracy, pharmacies repeatedly complained that the drugs purchased from Safe Chain Solutions were dirty, tampered with, or contained the wrong medication. On at least a dozen occasions, pharmacies reported receiving bottles labeled as HIV medication that instead contained other drugs, including Seroquel, an anti-psychotic, and pain medication.

One patient who ingested Seroquel believing it was his prescribed HIV medication lost consciousness for 24 hours. Evidence at trial established that missing even a single dose of HIV medication can increase a patient's viral load and heighten community transmission risk in areas with high HIV infection rates.

A former attorney for the Boyds testified that they concealed and misrepresented material information while seeking legal advice about pharmacy complaints and reporting obligations to the Food and Drug Administration (FDA). According to the evidence, the Boyds failed to report numerous incidents to the FDA involving pharmacies that had received incorrect or tampered medications.

Safe Chain Solutions' former Director of Compliance testified over four days that she repeatedly warned the Boyds about the risks of purchasing from black-market suppliers, but her concerns were ignored.

She testified that Charles Boyd falsely told her the company could continue doing business with Boulevard 9229 because the lawyers had approved it, contradicting both attorney testimony and contemporaneous emails.

A second former Compliance Manager testified that the Boyds instructed her not to document concerns in writing and often responded to compliance questions by saying, "Figure it the **** out," or "FITFO," a phrase she said was commonly used by the Boyds.

After a multi-week trial, the jury convicted the Boyds each of one count of conspiracy to introduce misbranded drugs, two counts of introducing misbranded drugs into interstate commerce, one count of conspiracy to traffic in medical products with false documentation, one count of conspiracy to commit wire fraud, and one count of wire fraud.

The Boyds each face a maximum penalty of five years in prison for the conspiracy to introduce misbranded drugs count, three years in prison for each count of introducing misbranded drugs into interstate commerce, 15 years in prison for conspiracy to traffic in medical products with false documentation, 20 years in prison for conspiracy to commit wire fraud, and 20 years in prison for the wire fraud count. A federal district court judge will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

U.S. Attorney Reding Quiñones for the Southern District of Florida; Acting Special Agent in Charge Fernando Porras of the U.S. Department of Health and Human Services, Office of Inspector General, (HHS-OIG), Miami Regional Office; and Special Agent in Charge Brett D. Skiles of the FBI, Miami Field Office, made the announcement.

HHS-OIG Miami and FBI Miami are investigating the case.

Assistant U.S. Attorney Alexander Thor Pogozeleski and Trial Attorney Jacqueline Zee DerOvanesian of the Department of Justice's Fraud Section are prosecuting the case. Assistant U.S. Attorney Nicole Grosnoff is handling asset forfeiture.

Related court documents and information may be found on the website of the District Court for the Southern District of Florida at www.flsd.uscourts.gov or at <http://pacer.flsd.uscourts.gov>, under case number 24-cr-20255.

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Updated November 17, 2025

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